☐ **CIRCUIT** ☐ **ORPHANS' COURT FOR** _____, **MARYLAND**
City/County

Located at _____ Telephone _____
Court Address

In the Matter of Case No. _____

_____ _____
Name of Minor Docket Reference

PETITION FOR GUARDIANSHIP OF MINOR
(Md. Rule 10-111)

INSTRUCTIONS

1. Use this form of petition when a guardianship of a minor is sought, even if the minor also is disabled.
2. If the subject of the petition is not a minor, use the form petition set forth in Rule 10-112.
3. If guardianship of more than one minor is sought, a separate petition must be filed for each minor, except that a petition may include a request for guardianship of two or more similarly situated full siblings. If guardianship of more than one sibling is sought, complete a separate Paragraph 1 for each sibling. In Paragraphs 2-13, if a response does not apply to all siblings, provide the requested information as to each sibling.
4. If the petition is to be filed in the Circuit Court for Baltimore City, use "Baltimore City" as the name of the county.

☐ Guardianship of Person ☐ Guardianship of Property ☐ Guardianship of Person and Property

The petitioner, _____ , _____ ,
Name Age

whose address is _____ ,

and whose telephone number is _____, and whose e-mail address

(if available) is _____, represents to the court that:

1.

Minor's name	Age	Birthdate	Gender	Child of:	Minor resides at:
				and	
				and	
				and	
				and	
				and	
				and	

A birth certificate of the minor(s) is/are attached.

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2. If the minor(s) does/do not reside in the county in which this petition is filed, state the place in this county where the minor(s) is/are currently located _____.

NOTE: For purposes of this form, "county" includes Baltimore City.

3. The relationship of the petitioner to the minor(s) is/are Guardian.

4. The minor(s)

☐ is/are a beneficiary of the Department of Veterans Affairs and the guardian may expect to receive benefits from that Department.

☐ is/are not a beneficiary of the Department of Veterans Affairs.

5. *Complete Section 5 if the petitioner is asking the court to appoint the petitioner as the guardian.*
(Check only one of the following boxes)

☐ I have not been convicted of a crime listed in Code, Estates and Trusts Article, §11-114.

☐ I was convicted of such a crime, namely _____. The conviction occurred in _____ (Year), in the _____ (Name of court), but the following good cause exists for me to be appointed as guardian: _____.

6. *Complete Section 6 if the petitioner is asking the court to appoint an individual other than the petitioner as the guardian.*

6 a. Prospective Guardian of the Person *(Complete section 6 a if seeking guardianship of the person.)*

The name of the prospective guardian of the person is _____ and that individual's age is _____. The relationship of that individual to the minor(s) is/are _____.

(Check only one of the following boxes)

☐ _____ (Name of prospective guardian) has not been convicted of a crime listed in Code, Estates and Trusts Article, §11-114.

☐ _____ (Name of prospective guardian) was convicted of such a crime, namely _____. The conviction occurred in _____ (Year), in the _____ (Name of court), but the following good cause exists for the individual to be appointed as guardian: _____.

6 b. Prospective Guardian of the Property *(Complete section 6 b if the prospective guardian of the property is different from the prospective guardian of the person or if guardianship of the person is not sought.)*

The name of the prospective guardian of the property is _____ and that individual's age is _____ . The relationship of that individual to the minor(s) is/are _____ .

(Check only one of the following boxes)

☐ _____ (Name of prospective guardian) has not been convicted of a crime listed in Code, Estates and Trusts Article, §11-114.

☐ _____ (Name of prospective guardian) was convicted of such a crime, namely _____ . The conviction occurred in _____ (Year), in the _____ (Name of court), but the following good cause exists for the individual to be appointed as guardian: _____

_____ .

7. State the name and address of any additional person on whom service shall be made on behalf of the minor(s), including a minor who is at least 10 years of age: _____

_____

_____ .

8. The following is a list of the names, addresses, telephone numbers, and e-mail addresses, if known, of all interested persons (see Code, Estates and Trusts Article, §13-101(k)).

List of Interested Persons

Parents:

Name	Address	Telephone Number	E-mail Address (if known)
Name	Address	Telephone Number	E-mail Address (if known)

Siblings:

Name	Address	Telephone Number	E-mail Address (if known)
Name	Address	Telephone Number	E-mail Address (if known)
Name	Address	Telephone Number	E-mail Address (if known)
Name	Address	Telephone Number	E-mail Address (if known)

Any Other Heirs at Law:

Name	Address	Telephone Number	E-mail Address (if known)

Guardian (if appointed):

Name	Address	Telephone Number	E-mail Address (if known)

Any Person Holding a Power of Attorney of the Minor(s):

Name	Address	Telephone Number	E-mail Address (if known)

Minors' Attorney:

Name	Address	Telephone Number	E-mail Address (if known)

Any Other Person Who Has Assumed Responsibility for the Minor(s):

Name	Address	Telephone Number	E-mail Address (if known)

Any Government Agency Paying Benefits to or for the Minor(s):

Name	Address	Telephone Number	E-mail Address (if known)

Any Person Having an Interest in the Property of the Minor(s):

Name	Address	Telephone Number	E-mail Address (if known)

All Other Persons Exercising Control over the Minor(s) or the Minors' Property:

Name	Address	Telephone Number	E-mail Address (if known)

A Person or Agency Eligible to Serve as Guardian of the Person of the Minor(s):

Name	Address	Telephone Number	E-mail Address (if known)

9. The names and addresses of the persons with whom the minor(s) resided over the past five years, and the approximate dates of the minors' residence with each person are, as follows:

Names	Addresses	Approximate Dates

10. Guardianship is sought for the following reason(s):

_____

_____

_____.

11. If this petition is for Guardianship of the Property, the following is the list of all the property in which the minor(s) has/have any interest including an absolute interest, a joint interest, or an interest less than absolute (e.g. trust, life estate).

Property	Location	Value	Sole Owner, Joint Owner, (specific type), Life Tenant, Trustee, Custodian, Agent, etc.

12. The petitioner's interest in the property of the minor(s) listed in 11 is _____.

13. (a) All other proceedings regarding the minor(s) (including any proceedings in juvenile court) are, as follows: _____.

(b) All proceedings regarding the petitioner and prospective guardian filed in this court or any other court are, as follows: _____.

14. All exhibits required by the instructions below are attached.

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WHEREFORE, petitioner requests that this court issue an order to direct all interested persons to show cause why a guardian of the ☐ person ☐ property ☐ person and property of the minor(s) should not be appointed, and (if applicable) _____ should not be appointed as the guardian.
Name of prospective guardian

Date	Attorney's Signature	Attorney Number
Telephone Number	Attorney's Name	
Fax	Attorney's Address	
E-mail	City, State, Zip	

If there is no attorney:

Petitioner's Address	
City, State, Zip	Telephone Number
E-mail	Fax

Petitioner solemnly affirms under the penalties of perjury that the contents of this document are true to the best of petitioner's knowledge, information, and belief.

Date	Petitioner's Name
Petitioner's E-mail	Petitioner's Signature

ADDITIONAL INSTRUCTIONS

1. The required exhibits are as follows:
   (a) A copy of any instrument nominating a guardian [Code, Estates and Trusts Article, §13-701 and Maryland Rule 10-301(d)];
   (b) If the petition is for the appointment of a guardian for a minor(s) who is/are a beneficiary of the Department of Veterans Affairs, a certificate of the Secretary of that Department or any authorized representative of the Secretary, setting forth the age of the minor(s) as shown by the records of the Department of Veterans Affairs, and the fact that appointment of a guardian is a condition precedent to the payment of any money due the minor(s) from the Department of Veterans Affairs shall be prima facie evidence of the necessity for the appointment [Code, Estates and Trusts Article, §13-802 and Maryland Rule 10-301(d)].
2. Attach additional sheets to answer all the information requested in this petition, if necessary.